



EMPLOYMENT TRIBUNALS

Claimant: Mrs S Mannion

Respondent: Redbridge Associates Limited (trading as Smart Dental Care)

HELD AT: Liverpool

ON: 24, 25 and 26
September 2025

BEFORE: Employment Judge Benson (sitting alone)

REPRESENTATION:

Claimant: Mr J Mannion, claimant's uncle

Respondent: Mr Molloy, Counsel

JUDGMENT

1. The complaint of unfair dismissal is well-founded. The claimant was unfairly dismissed.
2. It is just and equitable to reduce the basic award payable to the claimant by 50% because of the claimant's conduct before the dismissal.
3. The claimant caused or contributed to the dismissal by blameworthy conduct, and it is just and equitable to reduce the compensatory award payable to the claimant by 50%.
4. The respondent shall pay the claimant the following sums:
 - (a) A basic award of **£5876.06**
 - (b) A compensatory award of **£42.74**.

Note that these are actual the sums payable to the claimant after any deductions or uplifts have been applied.

The recoupment Regulations do not apply

Schedule

Findings of Fact

The claimant was 56 at the date of dismissal.

Her weekly gross pay was £427.35 (12.21 x 35 hours)

The multiplier for the purposes of the calculation of the basic award is 27.5.

The claimant was paid 12 weeks' pay in lieu of notice and commenced a new role on 15 September 2023. She earned more per week net than in her role with the respondent and has no losses. She receives one day's fewer holiday per year than when she worked with the respondent.

There is no uplift or reduction for a failure to comply with the ACAS Code of Practice.

The basis award is calculated as follows: £427.35 x 27.5	£11,752.13
Less reduction of 50% contributory conduct	<u>£5,876.06</u>
Amount due	£5,876.06

The compensatory award is calculated as follows:

One day's holiday 12.21 x 7 hours	£85.47
Less reduction of 50% contributory conduct	<u>£42.74</u>
Amount due	£42.74

Approved by:
Employment Judge Benson
26 September 2025
Judgment sent to the parties on:
10 November 2025
For the Tribunal:

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Notes

Reasons for the judgment having been given orally at the hearing, written reasons will not be provided unless a request was made by either party at the hearing or a written request is presented by either party within 14 days of the sending of this written record of the decision. If written reasons are provided they will be placed online.

All judgments (apart from judgments under Rule 51) and any written reasons for the judgments are published, in full, online at <https://www.gov.uk/employment-tribunal-decisions> shortly after a copy has been sent to the claimants and respondents.

If a Tribunal hearing has been recorded, you may request a transcript of the recording. Unless there are exceptional circumstances, you will have to pay for it. If a transcript is produced it will not include any oral judgment or reasons given at the hearing. The transcript will not be checked, approved or verified by a judge. There is more information in the joint Presidential Practice Direction on the Recording and Transcription of Hearings and accompanying Guidance, which can be found at www.judiciary.uk/guidance-and-resources/employment-rules-and-legislation-practice-directions/



NOTICE

THE EMPLOYMENT TRIBUNALS (INTEREST) ORDER 1990

ARTICLE 12

Case number: **2400497/2024**

Name of case: **Mrs S Mannion** v **Redbridge Associates Limited (trading as Smart Dental Care)**

Interest is payable when an Employment Tribunal makes an award or determination requiring one party to proceedings to pay a sum of money to another party, apart from sums representing costs or expenses.

No interest is payable if the sum is paid in full within 14 days after the date the Tribunal sent the written record of the decision to the parties. The date the Tribunal sent the written record of the decision to the parties is called **the relevant decision day**.

Interest starts to accrue from the day immediately after the relevant decision day. That is called **the calculation day**.

The rate of interest payable is the rate specified in section 17 of the Judgments Act 1838 on the relevant decision day. This is known as **the stipulated rate of interest**.

The Secretary of the Tribunal is required to give you notice of **the relevant decision day**, **the calculation day**, and **the stipulated rate of interest** in your case. They are as follows:

the relevant decision day in this case is: 10 November 2025

the calculation day in this case is: 11 November 2025

the stipulated rate of interest is: 8% per annum.

For the Employment Tribunal Office